

#	Case Name	Tentative
49	Vega vs. Oliva 26-01540072	Motion to Strike Portions of Complaint Defendant Rynnerth Conrado Pineda Oliva’s motion to strike the punitive damages allegations and prayer from Plaintiff Zuli Vega’s First Amended Complaint is DENIED. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) Punitive damages are governed by Civil Code section 3294: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code § 3294(a).) To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in section 3294. (<i>Coll. Hosp., Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 721.) “Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (<i>Id.</i> at 725.) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).) In <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1004, the California Supreme Court explained that “punitive damages sometimes may be assessed in unintentional tort actions.” In <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 894-895, it noted that “something more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.” Indeed, “punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 [internal quotation omitted].) The First Amended Complaint (“FAC”) alleges, in pertinent part, as follows: This action arises from an automobile collision in which Defendant allegedly failed to yield to Plaintiff’s vehicle and struck it “with great force.” (FAC ¶¶ 1, 8.) The police report states that Defendant was arrested at the scene for violating Vehicle Code section 23152, subdivision (a), and identifies that violation as the primary collision factor. (FAC ¶¶ 17-18, 26-27.) The report also states that the collision occurred at approximately 1:10 a.m. and that Defendant fled the scene. (FAC ¶ 28.) The FAC further alleges that this conduct was despicable and that

		Defendant acted with malice, oppression, and knowing disregard for safety. (FAC ¶¶ 29-34.) These allegations are sufficient at this pleading stage to indicate a “conscious disregard of probable injury to others”. (<i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 90.) The allegations in this complaint go beyond just driving under the influence. The FAC alleges intoxicated driving, a collision, injury, flight from the scene, and abandonment of Plaintiff. Defendant shall file an answer to the FAC within 15 days after service of notice of ruling. Plaintiff to give notice.
50	Bayarsaikhan vs. Headlands Residential Series Owner Trust, Series E 25-01464240	Motion to Consolidate Plaintiffs Bayarmanlai Bayarksaikhan and Khulan Buyanbat’s motion to consolidate two matters is DENIED. Preliminarily, Plaintiffs fail to comply with the procedural requirements set forth in Rules of Court, Rule 3.350, subd. (a)(1)(A)-(C). The Notice of Motion is deficient as it does not list all named parties in each case, the names of those who have appeared, or the names of their respective attorneys of record. (See Rules of Court, Rule 3.350, subd. (a)(1)(A).) The Notice also fails to contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first. (See Rules of Court, Rule 3.350, subd. (a)(1)(B).) Further, the Notice does not appear to have been filed in the UD action. (See Rules of Court, Rule 3.350, subd. (a)(1)(C).) Moving forward on the merits, when there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1396.) As relevant here, when cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) Plaintiffs contend that consolidation of this matter with the UD matter is proper because the cases involve common issues of law and fact, relying on <i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367. The trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue, as a successful claim of title by the tenant would defeat the landlord's right to possession. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 385.) Where a <u>UD action</u> and a <u>title action</u> are both pending, the trial court in which the unlimited action is pending may stay the UD action until the issue of title is resolved in the unlimited action, or it